

PART F - MULTI-DWELLING HOUSING, MULTI DWELLING HOUSING (TERRACES), MANOR HOUSES AND RESIDENTIAL FLAT BUILDINGS

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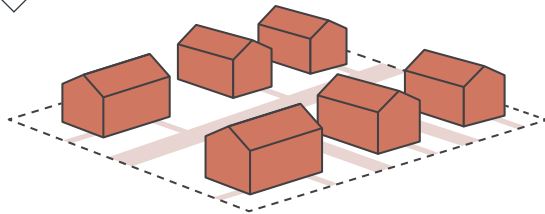
F1 Land to which Part F applies

Part F applies to development for the purposes of multi-dwelling housing, multi dwelling housing (terraces), manor houses and residential flat buildings.

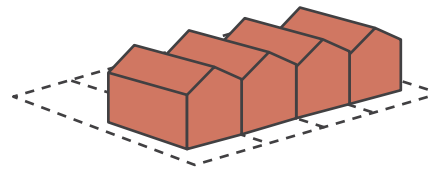
Note: The land located within the Five Dock Town Centre that is zoned R3 and that has a boundary to Barnstaple Road, Waterview Street or Second Avenue is excluded from Part F. See Part G for more information.

Figure F1.1 - Types of dwellings Part F applies to

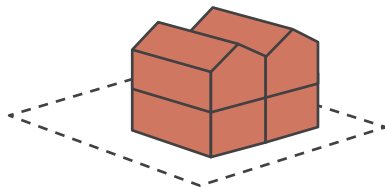
Multi-dwelling housing



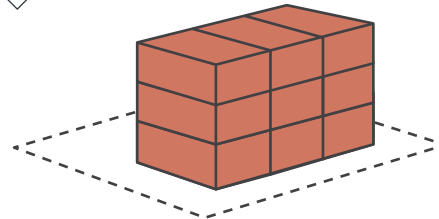
Multi dwelling housing (terraces)



Manor houses



Residential flat buildings



F2 Design Quality

F2.1 Design Quality of Residential Apartment Development

The Objectives and controls contained within this part of the DCP support the design quality principles of State Environmental Planning Policy (Housing) 2021 (the Housing SEPP).

The Principles apply to proposals subject to the Housing SEPP, that is, residential buildings that comprise or include:

- a) 3 or more storeys (not including levels below ground levels provided for car parking or storage, or both, that protrude less than 1.2 metres above ground level), and
- b) 4 or more self-contained dwellings (whether or not the building includes uses for other purposes, such as shops), but do not include a Class 1a building or a Class 1b building under the Building Code of Australia (e.g townhouses or villas where dwellings are side by side).

This DCP adopts design quality principles contained within Chapter 4 of the Housing SEPP, titled 'Design of residential apartment development' and the Apartment Design Guide, NSW Department of Planning and Environment, July 2015.

Note: Where there is an inconsistency between the Housing SEPP and this DCP, the Housing SEPP will prevail.

F2.2 Materials, colour schemes and details

Objectives

- O1. To ensure that the choice of external materials, colour schemes and building details on new development and existing houses visible from a public place, reinforces and enhances any identifiable visual cohesiveness or special qualities evident in the street and the adjoining locality.
- O2. To encourage complementary and sympathetic wall treatments on new development and existing houses that are consistent with the architectural style of existing dwellings found in the street and the adjoining locality.
- O3. To encourage roof forms and materials consistent with the positive qualities evident in the street and the adjoining locality.
- O4. To encourage verandahs/balconies etc. that are consistent with original structures evident in the street and the adjoining locality.
- O5. To permit flexibility in the choice of materials to meet the practical requirements of energy efficiency, construction and maintenance costs.

Controls

The colour and surface finish of external building materials should minimise the overall visual impact of new development and be sympathetic to the surrounding locality as identified in the relevant Character statement and the Streetscape Character Analysis submitted with the application.

Walls/ masonry

Controls	
C1.	Use darker face brick in streetscapes which predominantly exhibit this external finish.
C2.	Retain or incorporate existing sandstone fences, walls or wall bases into the design of the building.

Roof finish

Controls

C3.	Terracotta coloured (orange/red) roof tiles should be utilised in streets where this is the predominant roof colour.
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Balconies

Controls

C4.	First floor balcony balustrades facing the street should use a different material to the main wall finish.
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Colour schemes

Controls

C5.	Subject to the Streetscape Character Analysis, no large expansive surface of predominantly white, light or primary colours which would dominate the streetscape or other vista should be used.
C6.	New development should incorporate colour schemes that have a hue and tonal relationship with the predominant colour schemes found in the street.
C7.	Matching buildings in a row should be finished in the same colour, or have a tonal relationship.

General

Controls

C8.	All materials and finishes utilised should have low reflectivity.
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F3 Environmental criteria and residential amenity

F3.1 Visual and acoustic privacy

Objectives

- O1. Ensure the siting and design of a building provides a high level of visual and acoustic privacy for residents and neighbours in dwellings and private open space.
- O2. To provide personal and property security for residents and visitors.

Controls

C1.	Openable first floor windows should be located so as to face the front or rear of the building. Where it is impractical to locate windows other than facing an adjoining building, the windows should be off-set to avoid a direct view of windows in adjacent buildings.
C2.	Balconies should be located so as to face the front or rear of the building. No balconies are permitted on side elevations.
C3.	Provide a minimum sill height of 1.5 metres from finished floor level to windows on a side elevation which serves habitable rooms and has a direct outlook to windows or principal private open space (not being front yard) of adjacent dwellings or alternatively use fixed obscure glass.
C4.	Upper level balconies to the rear of a building should be set back a minimum of 2.0 metres from any side boundary and should have a maximum depth of 2.0 metres.
C5.	Upper level balconies that face side or rear boundaries will not be permitted when the upper level setback is less than 6.0 metres.
C6.	All balconies should be recessed unless special circumstances, as determined by Council, are considered to exist.

C7.	Provide suitable screen planting on a rear boundary that will achieve a minimum mature height of 6.0 metres where the rear upper floors are proposed to be less than 7.0 metres off a rear boundary.
C8.	Ground floor decks, patios and the like should not be greater than 500mm above natural ground level. If structures such as these are expansive and are sought on sloping ground, they should be designed to step down in relation to the topography of the site.
C9.	Where the visual privacy of adjacent properties is likely to be significantly affected from windows, doors and balconies, or where external driveways and/or parking spaces are located close to bedrooms of adjoining buildings, one or more of the following alternatives are to be applied: - Fixed screens of a reasonable density (minimum 85% block out) should be provided in a position suitable to alleviate loss of privacy; - Where there is an alternative source of natural ventilation, windows are to be provided with translucent glazing and fixed permanently closed; - Windows are off-set or splayed to reduce privacy effects; - An alternative design solution is adopted which results in the reduction of privacy effects; and - Suitable screen planting or planter boxes are to be provided in an appropriate position to reduce the loss of privacy of adjoining premises. Note: This option will only be acceptable where it can be demonstrated that the longevity of the screen planting has been provided for eg. Automatic watering systems.

Controls

C10.	The introduction of acoustic measures to reduce traffic/aircraft noise should not detract from the streetscape value of individual buildings.
C11.	Habitable rooms for multi-dwelling development are to have a minimum separation of nine (9) metres.

Use of rooftops of buildings and garages**Controls**

C12.	No trafficable outdoor spaces are permitted on the uppermost rooftop of a building or on garage roofs, such as roof decks, patios, gardens and the like, however; Outdoor roof space may be considered for buildings on steeply sloping sites where this is the dominant characteristic in the immediate vicinity as demonstrated by the Streetscape Character Analysis and there are no noise, privacy or amenity issues.
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F3.2 Access to views

Objectives

- O1. To protect and enhance opportunities for vistas and public views from streets and public places.
- O2. To ensure views to and from the site are considered at the site analysis stage.
- O3. To recognise the value of views from private dwellings and encourage view sharing based on the following four controls.
- O4. To recognise the value of view sharing whilst not restricting the reasonable development potential of the site.
- O5. Protect and enhance scenic and cultural landscapes.

To determine whether a development is satisfactory in relation to the Objectives pertaining to access to views, the following controls will be applied:

Controls

C1.	Development should seek to protect water views, iconic views and whole views. Water views are valued more highly than land views. Iconic views (eg of the Harbour Bridge or the City skyline) are valued more highly than views without icons. Whole views are valued more highly than partial views (eg a water view in which the interface between the land and water is visible is more valuable than one in which it is obscured). An icon should be a prominent identifying feature of the landscape and should be commonly held by the wider community as having iconic status.
C2.	Development should seek to protect views from the front and rear of buildings and where views are obtained from a standing position. The expectation to retain side views and sitting views is often unrealistic.

C3.	Development should seek to protect views from living areas and minimise the extent of impact. The impact on views from living areas is more significant than from bedrooms or service areas (though views from kitchens are highly valued because people spend so much time in them). The impact may be assessed quantitatively, but in many cases this can be meaningless. For example, it is unhelpful to say that the view loss is 20% if it includes the Harbour Bridge. Council will attempt to assess the view loss qualitatively as negligible, minor, moderate, severe or devastating.
C4.	Development in view affected areas should not only be designed to meet relevant development controls but also be designed to achieve view sharing. A development that complies with all planning controls is more reasonable than one that breaches them. Where an impact on views arises as a result of non-compliance with one or more planning controls, even a moderate impact is unreasonable. A complying proposal of a more skillful design could provide the applicant with the same development potential and amenity and reduce the impact on the views of neighbours.
C5.	Ensure development in foreshore and peninsula localities do not adversely impact upon views to and from Parramatta River and Sydney Harbour, from within and outside the local government area.
C6.	Development applications in foreshore and peninsula localities are required to include photomontages or computer modelling to illustrate the visual effects of the proposal as viewed from nearby public domain within and outside the LGA.

Note: In some cases, Council will insist on the erection of height poles/ building templates to indicate the height of the proposed development together with written and/ or photographic montages to ensure that view losses are minimal. Template construction is to be to the satisfaction of Council officers and is to be certified by a registered surveyor upon erection.

F3.3 Access to public transport

Objectives

- O1. To facilitate safe and easy walkable access to major public transport hubs and local centres.

Controls

- | | |
|-----|---|
| C1. | Developments in the vicinity of major public transport hubs (including Metro and railway stations) and local centres are to be designed to support the planning of walkable access including: <ul style="list-style-type: none">a) Upgrading of footpathsb) Improving accessibilityc) Creating new through-site links/routesd) Planting shade treese) Lightingf) Passive visual surveillance |
|-----|---|

F4 General Controls

F4.1 Frontage and dwelling width

Objective

- O1. To ensure lot dimensions are able to accommodate residential development and provide adequate open space and car parking consistent with the relevant requirements of this DCP.

Controls

- | | |
|-----|---|
| C1. | <p>Any dwelling within a manor house or multi dwelling housing development is to have a minimum width of 7m if the dwellings have parking accessed from the primary street and do not have consolidated basement parking with a single entry or parking accessed from a rear lane or secondary frontage.</p> <p>The minimum width may be reduced to 5m if the dwellings have consolidated basement parking with a single entry, or parking accessed from a rear lane or secondary frontage.</p> |
|-----|---|

Note: Refer to the Canada Bay Local Environmental Plan for minimum frontage requirements.

F4.2 Building setbacks

Setbacks define the overall footprint of a building and the outer extremities of that building in relation to the front, side and rear boundaries.

Appropriate street setback controls can contribute to the public domain by enhancing the streetscape character and the continuity of street facades. Street setbacks also enhance the setting of a building. Canada Bay Council places particular emphasis on continuing the building alignment in uniform streetscapes.

Rear setbacks provide space for planting, including trees, which will achieve a reasonable height and canopy and provide for adequate open space for the amenity of residents. Rear setbacks also promote privacy between residents of adjoining properties, particularly where development is greater than single storey.

Objectives

- O1. To integrate new development with the established setback character of the street.
- O2. Preserve significant vegetation which contributes to the public domain and allows for street landscape character to be enhanced.
- O3. Ensure adequate separation between buildings consistent with the established character and rhythm of built elements in the street.
- O4. To ensure adequate separation between buildings for visual and acoustic privacy.
- O5. Maximise solar access to achieve amenity for neighbours.

Front setbacks - primary street

Controls	
C1.	The front setback of all residential buildings is to be a minimum of 4.5 metres or no less than the Prevailing Street Setback, whichever is the greater. The “Prevailing Street Setback” is the setback calculated by averaging the setback of five (5) adjoining residential properties on both sides of the development. (Refer Figure F4.1) Where there are fewer than five residential properties or a non-residential use property between a street end or corner and the development site, the “Prevailing Street Setback” is the setback calculated by averaging the setback of the five next residential properties fronting the street (if any) on both sides of the property. (Refer Figure F4.2) <i>Note: In many instances, the front setback of buildings in Canada Bay is 7.5 metres or greater and development in these areas will be required to comply with this prevailing setback.</i>
C2.	No balconies, entry porches or verandahs are permitted to encroach within the front setback. The only encroachments permitted within the front setback are restricted to eaves and awnings for weather protection but no supporting columns or posts.
C3.	Where a site has more than one street frontage (other than a lane) and a dwelling is proposed to the rear of the site, the development must acknowledge the prevailing setback of both streets.

Note: On a site with two street frontages, the primary street is considered to be the one to which the property is addressed.

Front setbacks - parallel road lot

Controls	
C4.	If the secondary street (other than a lane) is at the rear of the property, any dwelling facing the secondary street is to use the secondary street as its primary street and be designed to comply with the Front setback – primary street controls.

Front setbacks - corner lot

Controls	
C5.	If the secondary street (other than a lane) is at the side of the property, any dwelling proposed to the rear of the site must acknowledge the prevailing street setback of the secondary street. (Refer Figure F4.3)
C6.	Any dwelling that faces the primary street must have a secondary street (side setback) of a minimum of 2m for the first 25m measured from the corner.
C7.	Any dwelling to the rear of the site is to face the secondary street and is to use the secondary street as its primary street and be designed to comply with the Front setback – primary street controls.
C8.	The prevailing street setback for the secondary frontage is to be applied from 25m from the corner to the existing rear boundary of the site.

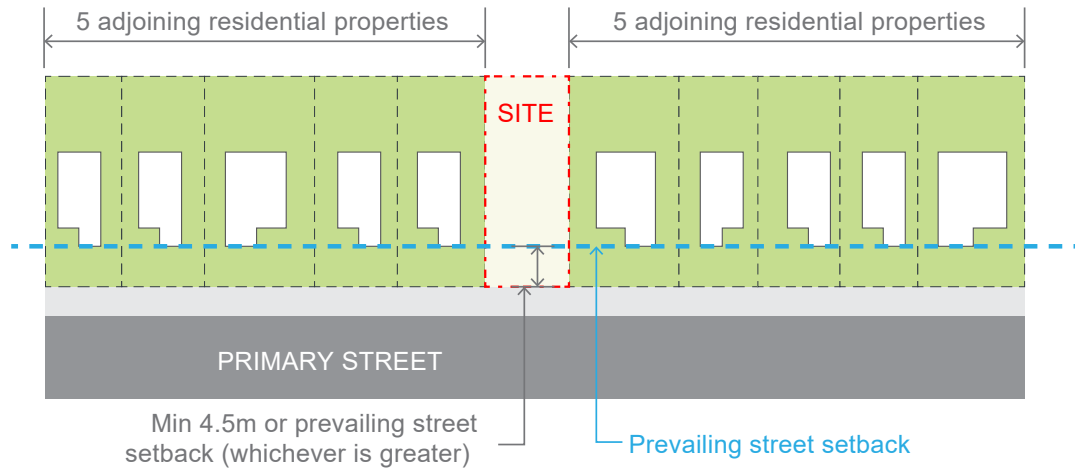


Figure F4.1 Calculation of the prevailing street setback

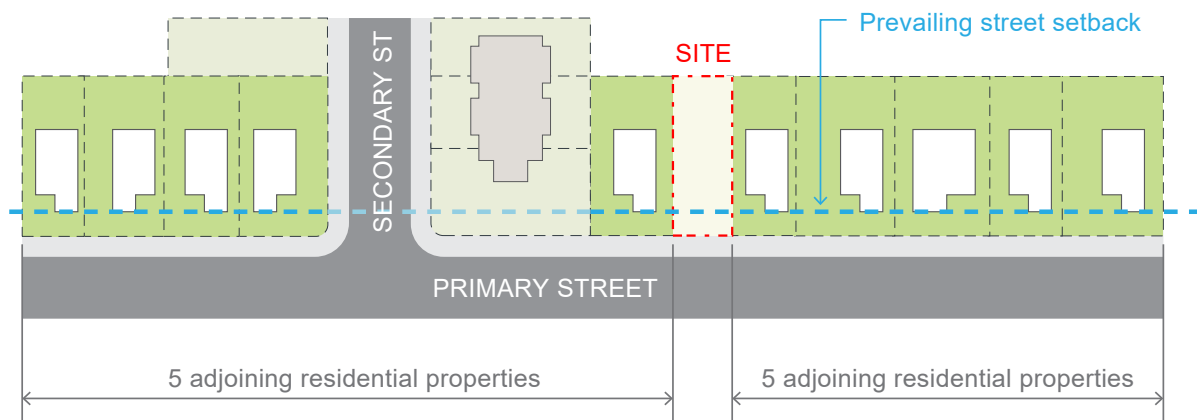


Figure F4.2 Calculation of the prevailing street setback near corner sites

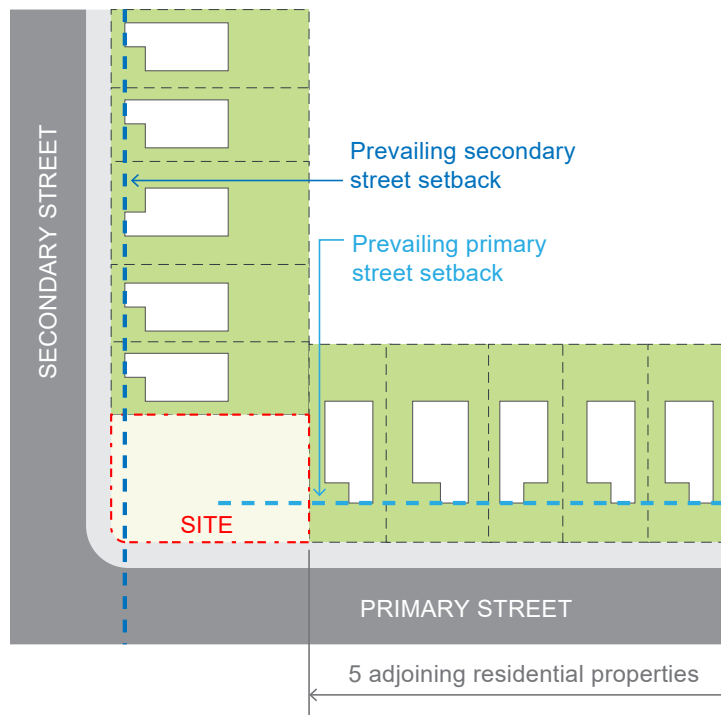


Figure F4.3 Calculation of the prevailing street setback on a corner development site (second dwelling)

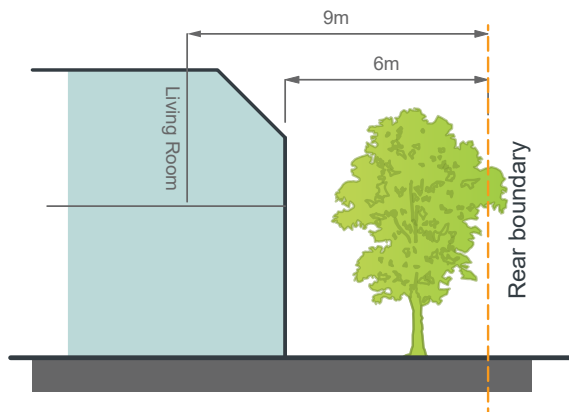


Figure F4.4 Rear setback control for single street frontage lots

Side setbacks

Controls	
C9.	All developments are to comply with the following numerical requirements:
Development	Minimum distance from side boundary of parent lot
Multi-dwelling housing	All walls are to be set back a minimum of 1500mm.
Multi dwelling housing (terraces)	All walls are to be set back a minimum of 1500mm.
Manor houses	All walls are to be set back a minimum of 1500mm.
Residential flat buildings	All walls are to be set back a minimum of 5000mm.

Note 1: Upper floor setbacks may be achieved by stepping the building in, integrating any proposed upper floor within the roof form or by setting back both the ground and first floors from the side boundaries.

Note 2: Sites that have more than one street frontage (other than a lane) will have additional setback requirements.

Rear setbacks – single street frontage

Controls	
C10.	All development (not including an outbuilding) is to have a minimum rear setback of 6.0 metres.
C11.	Any living room located on an upper floor is to have a minimum rear setback of 9.0m.

(Refer Figure F4.4)

Rear setbacks – corner lot

Controls	
C12.	The dwelling oriented to the secondary frontage shall have a minimum setback to the rear boundary of the parent lot of 1.5 metres and a minimum setback to the side boundary (at rear of dwelling) of 4 metres.
C13.	Any living room located on an upper floor is to be oriented towards the street frontage, and not extend through to the rear, to minimise overlooking of side and rear boundaries.

Basement setbacks

Controls	
C14.	Basement excavation for all development is limited to the area of the building at ground level. The excavation setback includes the driveway access to the basement.
C15.	Where it can be demonstrated the site is so constrained (for example by its width) that it is impossible to provide basements without extending beyond the permitted side and rear setbacks, excavation up to but no closer than 3.0 metres to a site boundary will be considered.

Internal setbacks

Controls	
C16.	If two or more rows of dwellings are proposed in Multi-Dwelling Housing or Residential Flat Buildings, an internal setback of 12.0 metres is required between rows.

Outbuildings

Controls	
C17.	Outbuildings are to be located behind the main building alignment and should have a minimum setback of 900mm to side and rear boundaries. However, reduced side and rear boundary setbacks may be considered on merit where: a) they are consistent with the setbacks of outbuildings in the vicinity; b) they require no maintenance (including roof gutters); c) there are no adverse impacts to the amenity of the adjoining properties; and d) the total area of all outbuildings (including any secondary dwellings) does not exceed 35m².

However, reduced side and rear boundary setbacks may be considered on merit where:

- a) they are consistent with the setbacks of outbuildings in the vicinity;
- b) they require no maintenance (including roof gutters);
- c) there are no adverse impacts to the amenity of the adjoining properties; and
- d) the total area of all outbuildings does not exceed 35m².

Advisory Notes

Notwithstanding compliance with the above numerical controls, Council may require building setbacks to be increased if necessary to reduce bulk, overshadowing, visual impact, view loss, privacy concerns and to retain existing trees on site.

Any Foreshore Building Line will continue to apply and overrides any setback provisions in this plan.

F4.3 Street orientation and presentation

Objectives

- O1. Ensure that development contributes to the activity, safety, amenity and quality of streets and the public domain.
- O2. Present appropriate frontages to adjacent streets and public domain in terms of scale, finishes and architectural character.
- O3. Provide legible and accessible entries from the street and the public domain.
- O4. Minimise and ameliorate the effect of blank walls (with no windows or entrances) at the ground level.
- O5. Minimise amenity impacts upon adjoining sites.

Controls	
C1.	Buildings shall be aligned and oriented to all street frontages.
C2.	Buildings must address all street frontages through the provision of habitable rooms, windows and doors and architectural features.
C3.	At a minimum, the front façade of a dwelling shall orientate the front door and a window of a habitable room on the ground floor to address the principal street frontage. If the site has more than one street frontage and more than one dwelling is proposed then this is to be applied to all frontages.
C4.	Buildings are to have a street address and provide a direct line of sight from a street to the principal dwelling entry, common building entry or entries. Where a development comprises a number of buildings with a variety of orientations, a major part of the overall development is to face the street;
C5.	Provide individual entries directly from the street to any ground floor dwellings next to the street.

Controls

C6.	Buildings are to be designed to maximise the number of entries, visible internal uses at ground level, and include high quality finishes and public art to enhance the public domain.
C7.	Development that exposes the blank side of an adjoining building or has a party wall to the public domain is to be designed with a visually interesting treatment of high quality design applied to that wall.
C8.	Ground floor tenancies and building entry lobbies are to: - have entries at the same level as the adjacent footpath or public domain; - have finished floor levels between 0-1.0m above or below the adjacent footpath or public domain entry; - provide opportunities for direct surveillance of the adjacent street or public domain at maximum intervals of 6m; and - be elevated up to 1.0m above ground level for privacy for ground floor residential uses.
C9.	Lanes are to be fronted by entries to dwellings, retail and/or commercial uses where practicable.
C10.	Align breaks between buildings with nearby streets, lanes and pedestrian links to enable view connections.

Refer to Figure F4.5 - Figure F4.7.



Figure F4.5 Undesired development, dwellings not orientated towards the street frontage

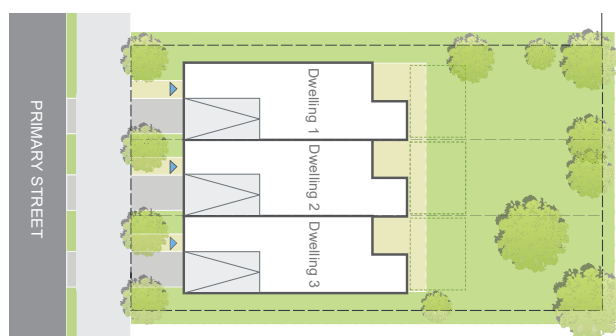


Figure F4.6 Desired development, where dwellings are orientated towards the street frontage

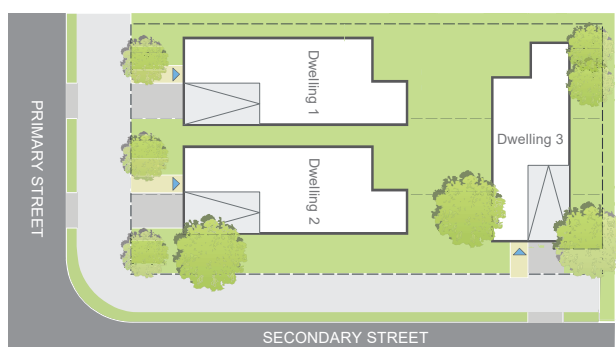


Figure F4.7 Desired development on lots with more than one street frontage where dwellings are orientated towards all streets

F4.4 Height of buildings

Height is an important control because it has a major impact on the physical and visual amenity of a place. Building height is also critical in addressing impacts from development such as solar access, privacy and view loss.

Objectives

- O1. To ensure that buildings are compatible with the height, bulk and scale of the existing and desired future character of the locality.
- O2. To minimise visual impact, disruption of views, loss of privacy and loss of sunshine to existing residential development.
- O3. To minimise the adverse impact on Conservation Areas, Heritage Items and contributory buildings.
- O4. To reduce the visual impact of development when viewed from the Parramatta River as well as other public places such as parks, roads and community facilities.

Controls

- C1. The following maximum building heights should not be exceeded:

Dwelling type	Maximum storeys
Manor houses	Two (2) storey where LEP maximum height 8.5m > Two (2) storey where LEP maximum height >8.5m
Multi-dwelling housing	Two (2) storey
Multi-dwelling (terraces)	Two (2) storey where LEP maximum height 8.5m Three (3) storey where LEP maximum height 9.0m
Residential flat building	Two (2) storey where LEP maximum height 8.5m > Two (2) storey where LEP maximum height >8.5m
Outbuildings	One (1) storey

Note 1: Reference should be made to the Building Height Maps which accompany the Canada Bay Local Environmental Plan.

Note 2: On a site with two street frontages, the dwelling facing the primary street frontage is considered to be the front dwelling.

Note 3: For the purpose of calculating the number of street frontages a lane is not considered to be a street frontage

Controls

- C2. Multi dwelling housing (terraces) must not exceed two storeys unless it complies with the requirements set out in Clause 4.3 of the Canada Bay Local Environmental Plan. Refer also to Figure F4.11.

Attics above dwellings

Controls

- C3. The use of an attic room within the roof space of a dwelling house is permitted for habitable purposes, provided that:
- a) no external balconies are proposed for the attic room;
 - b) the attic room does not increase the bulk of the building;
 - c) it does not compromise the privacy of adjacent properties.

Attics above garages and outbuildings

Controls

- C4. A single storey structure with an attic above is only permissible if:
- it is adjacent to a rear lane;
 - the height does not exceed 5.4m;
 - amenity to adjacent sites is maintained;
 - No external balconies are proposed for the attic room;
 - The attic room does not increase the bulk of the building;

- It does not compromise the privacy of adjacent properties;
- The roof pitch of a rear lane building must be between 30° and 40°;
- Any structure on a lot adjoining a rear lane is to be clearly subservient to the principal dwelling.

Refer to Figure F4.8, Figure F4.9, Figure F4.10 and Figure F4.11

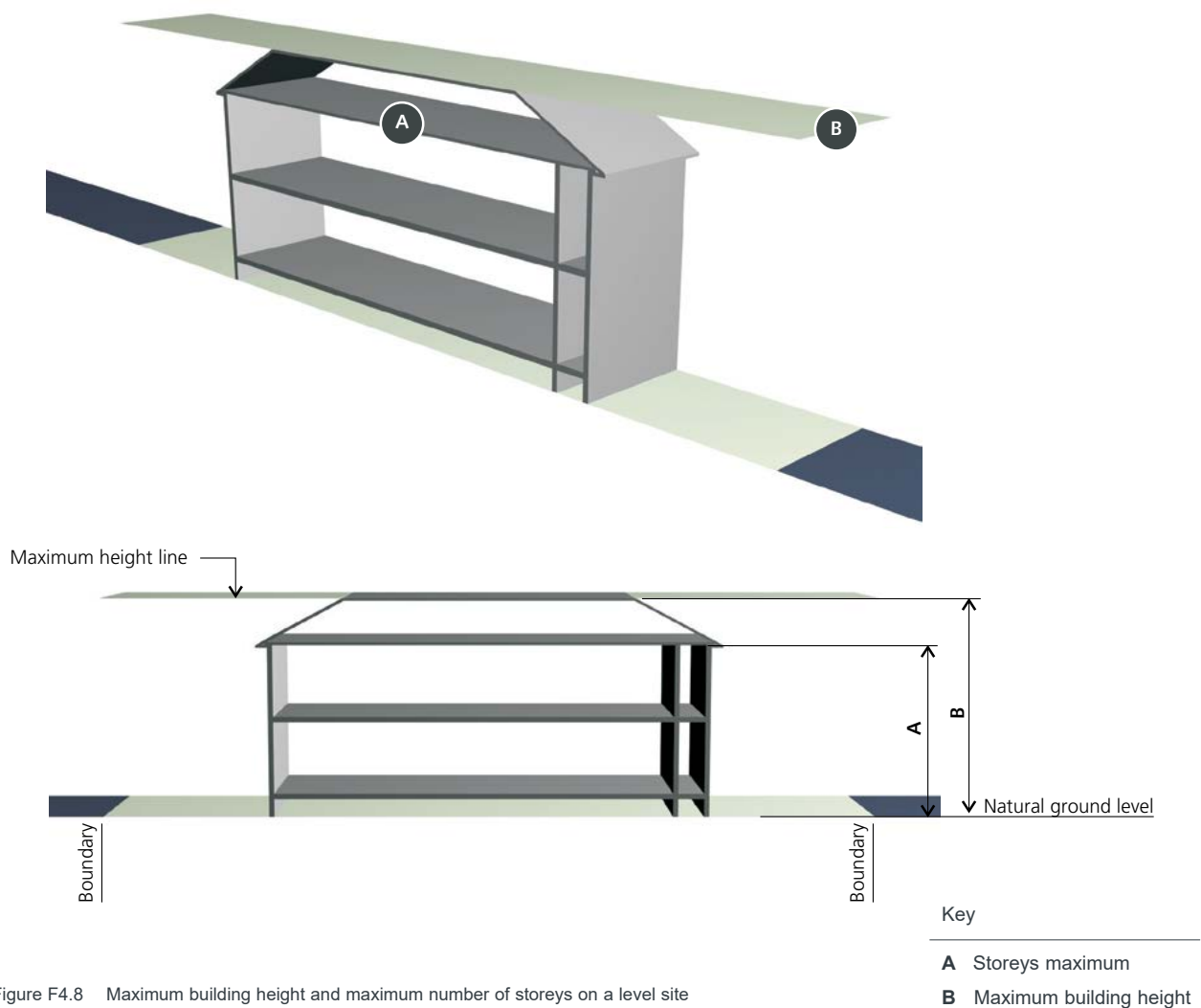


Figure F4.8 Maximum building height and maximum number of storeys on a level site

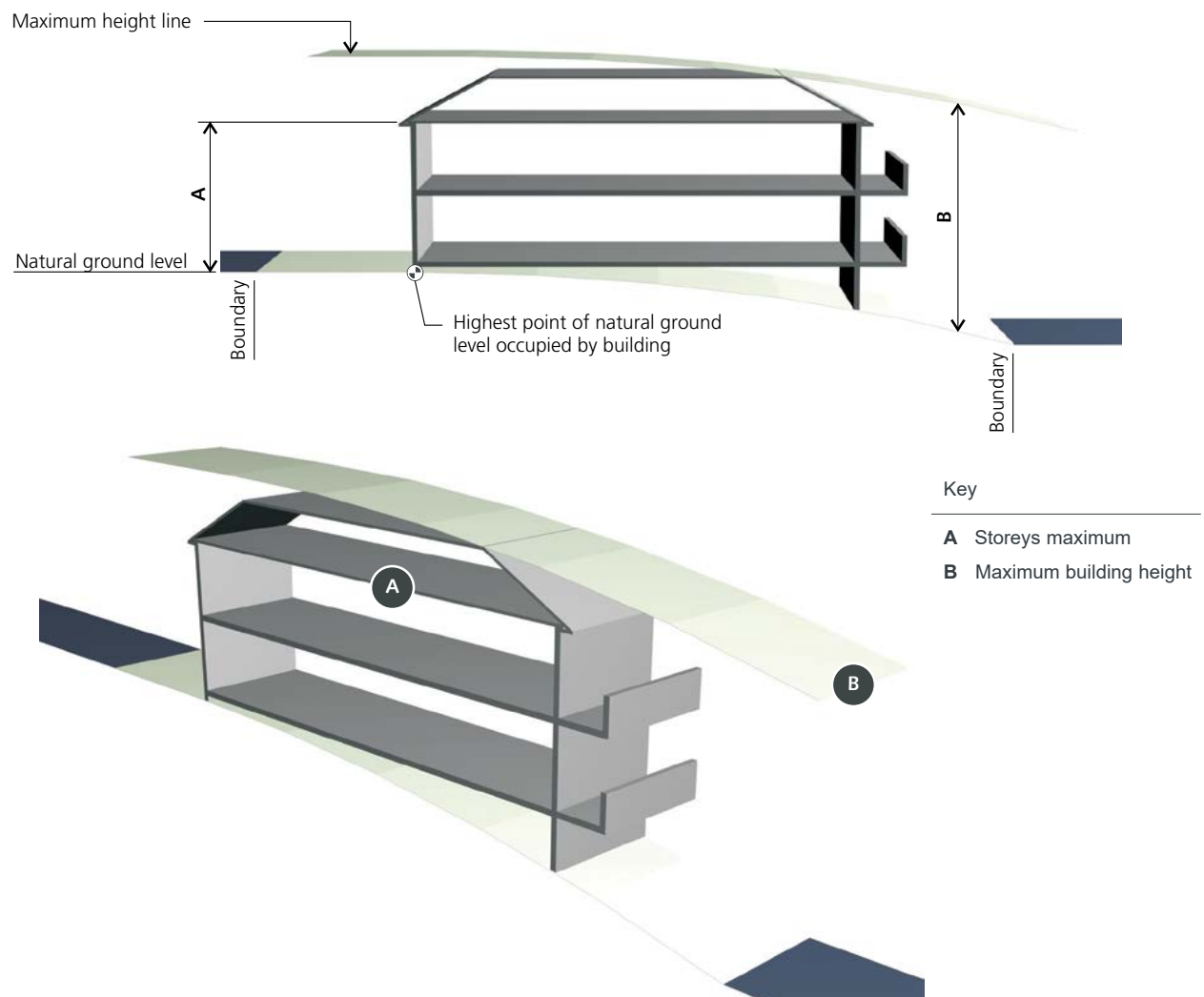


Figure F4.9 Maximum building height and maximum number of storeys on a sloping site

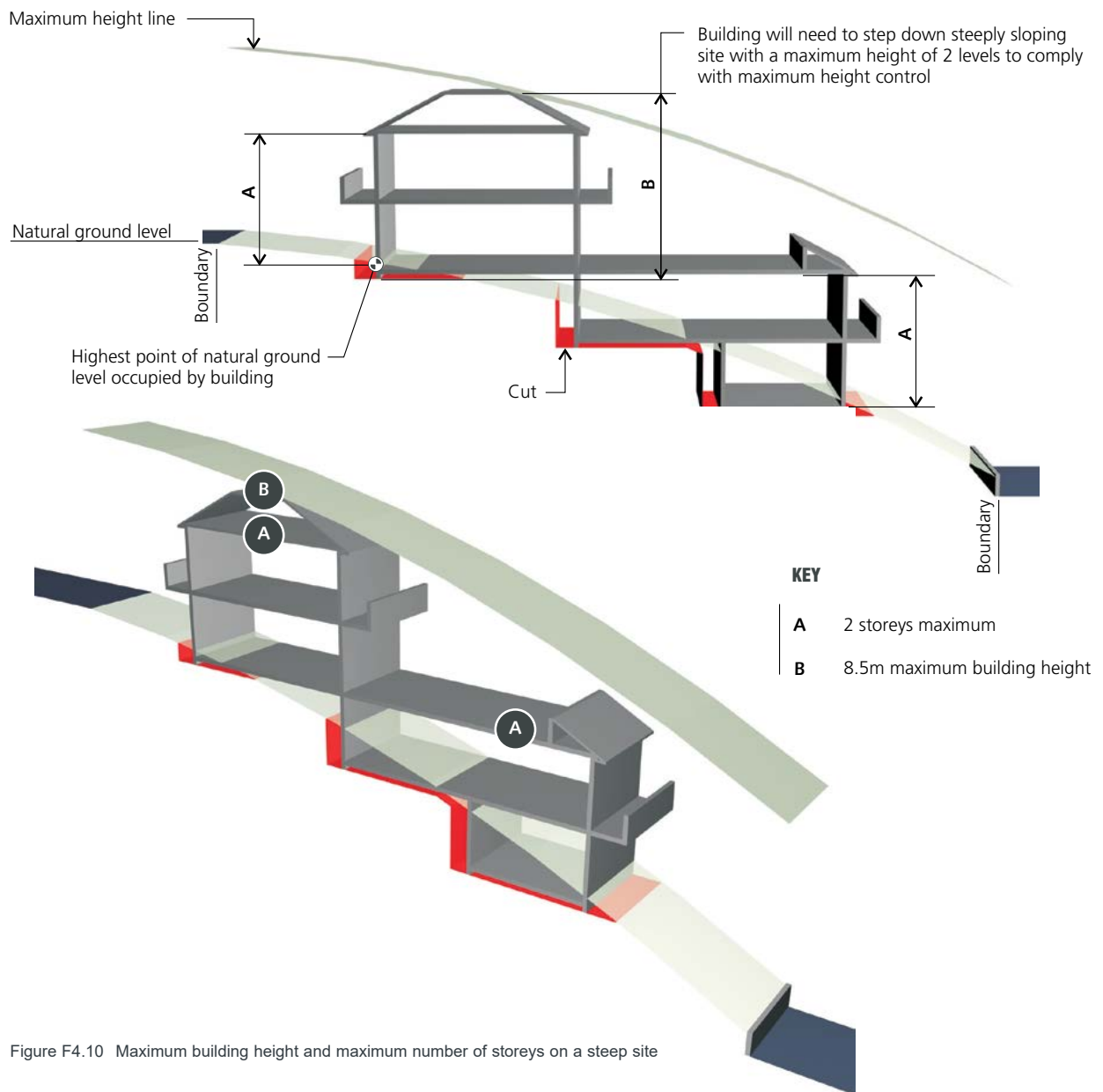


Figure F4.10 Maximum building height and maximum number of storeys on a steep site

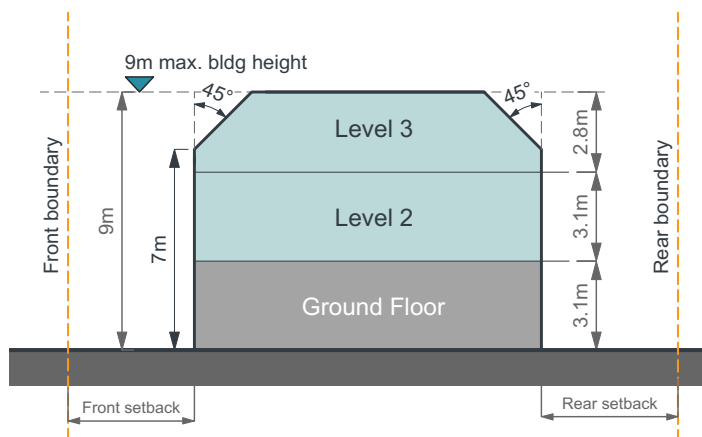


Figure F4.11 Maximum building height and maximum number of storeys for multi dwelling housing (terraces) in accordance with Clause 4.3 of Canada Bay Local Environmental Plan

F4.5 Bulk and Scale

Objectives

- O1. To ensure that buildings are compatible with the bulk and scale of the desired future character of the locality.
- O2. To minimise the effects of voids in the bulk and scale of buildings.

Controls

C1.	Large void areas are considered to contribute to the overall mass of a building. Any void areas proposed must demonstrate its necessity for the specific functional outcomes of the building.
C2.	Notwithstanding compliance with any relevant standards, applicants must demonstrate that the bulk and relative mass of development is acceptable in terms of the following impacts upon the street and adjoining dwellings: a) Overshadowing; b) Privacy; c) Streetscape considerations; d) Building setbacks; e) Parking requirements; f) Visual impact; g) Impact upon existing views; h) Impact on landscaped area and the existence of protected trees on site; i) The size and shape of the allotment; and j) Site topography.

Note: Compliance with the maximum FSR and height standards does not guarantee approval if bulk and scale is considered to be excessive.

F4.6 Landscaped area

Objectives

- O1. To enhance the existing streetscape.
- O2. To enhance the quality & amenity of the built form.
- O3. To provide privacy and shade.
- O4. To minimise the extent of hard paved areas and facilitate rainwater infiltration.
- O5. To preserve and enhance locally native biodiversity and habitat through appropriate connectivity planting of locally native vegetation.
- O6. To provide large consolidated areas of landscaping that are usable and sustainable and that can be maintained long term.

Controls

C1.	Landscape areas need to be consistent with the definition in this DCP.
C2.	Landscaping that has an area of less than 1.5m x 1.5m must not be included in landscaped area calculations.
C3.	Landscaping is to comply with controls outlined in Section B6 Urban Ecology, ensuring retention and addition of habitat features, and comprising locally native species from <i>Appendix 3</i> in the first instance.
C4.	Landscaped open space may comprise both communal and private open space and is to be provided in accordance with the following table, Table F-A:
C5.	Existing protected trees are to be retained and integrated into the landscaped area. Building footprints are to be located as far as reasonably possible from existing protected trees to enable retention.
C6.	Suitable replacement trees must be provided in accordance with Part B.
C7.	Canopy trees must be provided in accordance with Part B.

Table F-A Minimum Landscaped Areas

Dwelling Type	Minimum landscape area as percentage of parent lot site area	Minimum percentage of front setback to be landscaped	Minimum percentage of rear setback to be landscaped
Manor houses	50% lot area minus 100sqm	35%	50%
Multi dwelling housing	50% lot area minus 100sqm	35%	50%
Multi dwelling housing (terraces)	50% lot area minus 100sqm	35%	50%
Residential flat buildings	50% lot area minus 100sqm	35%	50%

Note: Landscaped area percentage is to be calculated on the total site area of the parent lot and is to be distributed evenly between dwellings of a similar size with a greater proportionate distribution to larger dwellings.

Controls

C8.	The majority of the front building setback and private courtyard areas of all development should comprise landscaping, where possible, in accordance with the definition in this DCP.
C9.	If more than one dwelling is proposed then the minimum percentage of front setback to be landscaped will apply to each dwelling.
C10.	If more than one dwelling is proposed and the dwellings are oriented to different frontages then the minimum percentage of front setback to be landscaped is 50% (to be applied to each frontage).
C11.	A significant landscaped setting is to be established for pathways and paved areas.
C12.	Pathways and driveways are to be located a minimum of 1.0 metres from common boundaries.
C13.	Any development on the foreshore should: a) Enhance the existing flora of the allotment; b) Plant native trees with a mature height greater than 12.0 metres; c) Avoid introduced species known to seed freely or spread easily by rhizomes or vegetative means.

F4.7 Parking and access

Refer to Part B - General Controls.

F4.8 Private open space

Objectives

- O1. To ensure private open space provides each dwelling with a space for outdoor activities and functions as an extension of the living area.
- O2. To enhance the built environment by providing open space for landscaping.

Controls	
C1.	The provision of private open space for residential development is to be in accordance with Table F-B.
C2.	A development should locate the private open space behind the front building line.
C3.	At least one portion of the private open space with a minimum area as specified in Table F-B should be adjacent to and visible from the main living and/or dining rooms and be accessible from those areas.
C4.	Development should take advantage of opportunities to provide north facing private open space to achieve comfortable year round use.

Table F-B

Type of Development	Minimum private open space area (per dwelling)	Minimum private open space dimensions (per dwelling)
All (Manor houses, Multi dwelling housing, Multi dwelling housing (terraces, Residential flat buildings)	Ground floor dwellings and dwellings with living room on ground floor: • 15m² for 1 bedroom dwellings • 25m² for 2 bedroom dwellings • 30m² for 3+ bedroom dwellings Upper floor dwellings: • 10m² for 1 bedroom dwellings • 14m² for 2 bedroom dwellings • 16m² for 3+ bedroom dwellings	Ground floor dwellings and dwellings with living room on ground floor: • 3m x 3m Upper floor dwellings: • 2m x 2m

F4.9 Common open space

Objectives

- O1. To provide low maintenance common open space areas for residents that facilitate opportunities for recreational and social activities, passive amenity, landscaping and deep soil planting.
- O2. Encourage publicly accessible or common courtyards in suitable locations to supplement the public open space network.
- O3. Design common courtyards as focal spaces that are visually connected to the public domain.
- O4. Encourage publicly accessible through-site pedestrian links.
- O5. To maximise safety.

Controls

C1.	A minimum area equal to 25% of the site, or 10m ² per dwelling (whichever is greater) is to be provided.
C2.	Common open space should have a minimum dimension of 3m, and larger developments should consider greater dimensions.
C3.	Common open space is to be: • located where it is highly visible and directly accessible to the maximum number of dwellings. • designed with an integral role in the site and include uses such as circulation, BBQ or play areas or passive amenity. • landscaped to provide privacy screening between buildings within and around the site and between private and common areas on site. • Landscaped with opportunities for large and medium size tree planting. • located adjacent to surrounding public open spaces such as reserves and public through site links where appropriate.
C4.	Some common open space may be provided on the roof top where it will not adversely impact on visual and acoustic privacy.

C5.	50% of the common open space must achieve direct sunlight for a minimum of 3 hours between 9 am and 3 pm on 21 June.
C6.	Facilities are provided within common open spaces and common spaces for a range of age groups, incorporating some of the following elements: • seating for individuals or groups • barbecue areas • play equipment or play areas • swimming pools, gyms, tennis courts or common rooms.
C7.	Common open space and the public domain should be readily visible from habitable rooms and private open space areas while maintaining visual privacy.
C8.	Common open space should be well lit.
C9.	Common open space should be well connected with public streets along at least one edge.
C10.	Common open space should be connected with nearby parks and other landscape elements.
C11.	Common open space should be linked through view lines, pedestrian desire paths, termination points and the wider street grid.

F4.10 Alterations and additions

Objectives

- O1. To provide a set of controls for the external alteration or modification of existing multiple dwelling residential developments.
- O2. The controls aim to ensure that development is aesthetically, environmentally and harmoniously compatible with the original Development Consent.
- O3. To maintain the internal and external streetscape or other design and appearance qualities which contribute to the character, identity and acceptability of the approved development.

Building height

Controls

- | | |
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| C1. | A proposal which externally creates the impression of an additional storey; such as a pergola or awning over a roof top deck or patio, above that which was originally approved, will not be permitted. |
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Roofs

Controls

- | | |
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| C2. | <p>The pitch (slope) of any roof facing or visible from a street or public place is to match the approved development.</p> <p>Where the roof cannot be seen from any street or public place, Council may allow some change to the form and/or pitch.</p> |
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Attic conversions

Controls

- | | |
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| C3. | <p>In approved developments where a close unity and harmonious design prevails, the uniformity and coherence of the streetscape/ appearance (either internal or external) should be maintained.</p> <p>Attic windows may be permitted if it is in character with the general architectural design of the development, is appropriately proportioned and has no doors or balconies.</p> |
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Balconies

Controls

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| C4. | The enclosure or addition of balconies or the addition of awnings after a building has been completed will not be acceptable unless the overall design is in keeping with the approved architectural theme. |
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Privacy and overlooking

Controls

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| C5. | <p>Care is to be taken to avoid any changes creating opportunities of further overlooking of other dwellings including private open space and pedestrian access ways. Care must also be taken not to inhibit the use of any areas provided for public open space or foreshore access through overlooking.</p> <p>Council shall consider whether reasonable privacy is maintained when making its determination.</p> |
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Views

Controls

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| C6. | <p>Care should be taken to protect views from existing buildings and public areas. Development proposals should be designed to minimise impact on the views enjoyed by adjoining buildings or sites by maintaining view corridors in relation to other dwellings, buildings or place.</p> <p>Council shall consider whether any views are affected.</p> |
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Materials and finishes

Controls

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| C7. | The proposed alterations and additions should match as far as possible the existing building in its use of materials and finishes. |
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Landscaping

Controls

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| C8. | Existing landscaping is to remain in accordance with plans approved by Council and not be varied except with Council's consent. A reduction in landscaping from the approved scheme is generally not favoured. Where permitted, Council may require some additional landscaping to be placed elsewhere. An increase in areas of hard paving will generally not be acceptable. |
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Garden/ tool sheds and glass houses

Controls

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| C10. | <p>Where the erection of a garden/tool shed or glass house is proposed it will be considered to be gross floor area. Structures of this type will not be permitted within building setbacks.</p> <p>If the garden/tool shed or glass house is visible from a public vantage point then the proposed structure should be sympathetic to the approved architectural theme and integrity of the development.</p> |
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Vergolas/ pergolas

Controls

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| C9. | <p>A vergola/ pergola must be attached to the building but not enclosed in any way. Pergolas/ vergolas are not permitted in any building setbacks, or where they will adversely affect sunlight or privacy of adjoining properties. They will generally only be considered on existing hard paved areas.</p> <p>Approval will not generally be granted to a vergola/ pergola that is built to the site boundary.</p> |
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Car parking spaces

Controls

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| C11. | <p>The reallocation or alteration of parking spaces may be permitted provided that it complies with Council's car parking requirements.</p> <p>The erection of carports over external parking spaces may be permitted where the architectural design is maintained.</p> <p>The purchasing, leasing or allocation for exclusive use of car parking spaces which are not allocated to any particular dwelling or purpose in the approved scheme may be permitted subject to:</p> <ol style="list-style-type: none"> The parking space must be in the same strata plan as the dwelling it is proposed to be allocated to or a different strata plan in the same community title. If external to the building the parking space is not to be enclosed or altered in any way. The use of such additional spaces is limited to parking or storage of private vehicles only (including boats on trailers). |
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Front façade articulation

Controls	
C12.	The development may have the following articulation zones: a) a primary road articulation zone that extends up to 1.5m forward of the minimum required setback from the primary road, b) a secondary road articulation zone that extends up to 1m forward of the minimum required setback from the secondary road.
C13.	The following building elements can be located in the primary road articulation zone or secondary road articulation zone: a) an entry feature or portico, b) a balcony, deck, patio or verandah, c) a window box treatment, d) a bay window or similar feature, e) an awning or other feature over a window, f) a sun shading feature, g) an eave, h) an access ramp.
C14.	The maximum total area of all building elements in the articulation zone, other than a building element specified in subclause C13 (e), (f), (g) or (h), must not comprise more than 25% of the area of the articulation zone.

F5 Ancillary structures

F5.1 Fencing

Fencing is an important streetscape element and can indicate the architectural period of an area. Consistent and uniform front fencing contributes significantly to the streetscape and character of an area.

For the purpose of this DCP, front fencing is any fence between the front alignment of a building and the street boundary.

Whilst privacy and security of individual households is an important consideration, high blank fencing along the street has a negative impact on the streetscape, personal safety and security by reducing the opportunities for overlooking of private areas. The construction of high blank front fencing is therefore not desirable and should be avoided.

Objectives

- O1. To maintain and enhance the character of streetscapes within the Canada Bay LGA.
- O2. To ensure that views from streets are maintained and not negated by excessively high fences.
- O3. To reduce the impact of front fencing on the streetscape and encourage fencing consistent with the existing streetscape pattern and in sympathy with the general topography and the architectural style of the existing dwelling or new development.
- O4. To ensure that materials used in front fencing are of high quality and are in keeping with the existing streetscape character.
- O5. To retain and re-use original fences and gates.
- O6. To reinstate traditional period fences and gates on street frontages (including side streets) that is of an appropriate architectural style to complement existing buildings.

Height of front fencing

Controls

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| C1. | Front fencing and side fencing forward of the building line constructed of a solid material such as brick/masonry, lapped and capped, timber, brushwood and the like should not exceed 900mm (including piers) in height above the footpath level. |
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Refer to Figure F5.1

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| C2. | Front fencing and side fencing forward of the building line, constructed of visually transparent material such as timber picket/ metal grill, should not exceed 1.2m in height above the footpath level. Visually transparent components should be no less than 40% of the fence structure and should be distributed evenly along the entire length of the fence. |
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Refer to Figure F5.2

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| C3. | From the building line, side fences are to taper down to the height of the front fence line. |
| C4. | In the case of sloping streets, the height limitations may be averaged, with regular steps. |
| C5. | <p>Solid fences greater than 1.2 m will only be considered in a streetscape which is shown in the Streetscape Character Analysis to exhibit in excess of 70% high solid fence forms. In such circumstance the appearance of the fence should be softened by:</p> <ol style="list-style-type: none"> a) Providing a continuous landscaped area of not less than 600mm wide on the street side of the fence, planted with tree and shrub species selected on the basis of low maintenance attributes; and b) The use of openings and variations in colour, texture or materials to create visual interest. |

Design of fences

Controls	
C6.	Avoid painting or rendering original masonry and sandstone fencing.
C7.	New fencing should complement any original fencing found on adjoining properties and in the street in terms of style, height, materials, colour, texture, rhythm of bays and openings. Note: Blank walls disrupt established fencing patterns and should be avoided.
C8.	Fencing and associated walls must be positioned so as not to interfere with any existing trees.

Materials

Controls	
C9.	Materials of construction will be considered on their merit, with regard being given to materials of construction of other contributory fences in the vicinity and/or that of the building on the allotment where such materials enhance the streetscape – with a general prohibition on the following materials: - Cement block; - Metal sheeting, profiled, treated or pre-coated. - Fibro, flat or profile; - Brushwood; and - Barbed wire.

General

Controls	
C10.	Gates and doors are to be of a type which do not encroach over the street alignment during operation.
C11.	Fencing is to be designed and constructed in accordance with the requirements of a front fence wherever dwellings have a front façade to a street; irrespective of whether there are dwellings within the same development fronting a primary street.

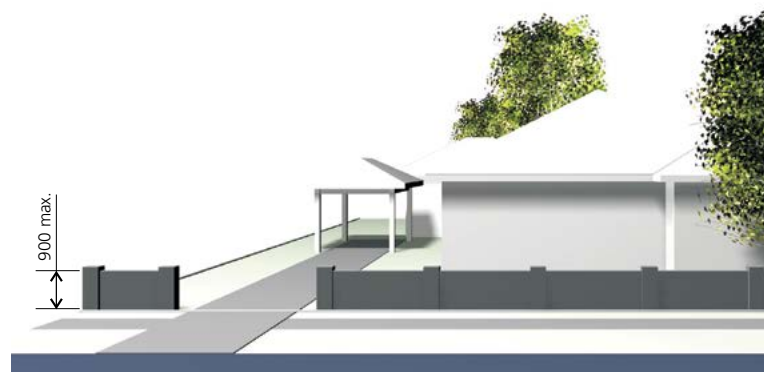


Figure F5.1 Example of solid front fencing with a height of 900mm

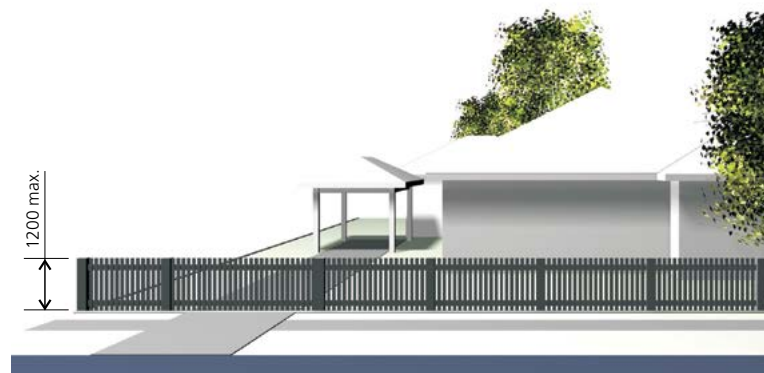


Figure F5.2 Example of open front fencing with a height of 1200mm

Advisory Notes

All controls are subject to the provision of adequate sight lines for emerging vehicles to enable surveillance of pedestrian and vehicle traffic.

F5.2 Site facilities

Site facilities include:

- Air conditioners;
- outbuildings;
- TV aerials and satellite reception dishes;
- mail boxes;
- garbage storage and collection areas;
- external storage areas;
- clothes drying areas;
- external laundry facilities and
- swimming pools and spas.

Proposals need to ensure adequate and appropriate provision of site facilities. These need to be accessible and not create amenity problems such as smell and unsightliness. The impact of site facilities on the overall appearance of the site and on the local streetscape needs to be considered.

The design of site facilities for multi-unit dwellings needs particular consideration as these facilities are shared. They need to be designed and located so that they are accessible by all residents and do not detract from the amenity of any residence.

Objectives

- O1. To ensure that adequate provision is made for site facilities.
- O2. To ensure that site facilities are functional and accessible to all residents.
- O3. To ensure that site facilities are easy to maintain.
- O4. To ensure that site facilities are thoughtfully and sensitively integrated into development, are unobtrusive and not unsightly.

Air Conditioners

Controls

C1.	Air conditioning units must be sited so that they are not visible from the street.
C2.	Air conditioning units must not be installed on the front façade of a building, within window frames or otherwise obscure a window.
C3.	Air conditioning units must not obscure architectural details visible from the street.
C4.	The noise level from air conditioning systems is not to exceed the L _{aeq} 15 minute by 5dBA measured at the property boundary.
C5.	Air conditioning units must not be installed where they will likely have a negative visual or acoustic impact upon neighbours.

Outbuildings and outdoor structures

Controls

C6.	Outbuildings and outdoor structures should be located behind the front building line. This clause does not apply to any required waste storage area for multi dwelling housing and residential flat buildings, front fences or carports permissible under the provisions of this DCP.
C7.	Windows and doors of outbuildings should face into the rear yard, or be frosted, if facing into a neighbour's property.

Clothes drying facilities

Controls

C8.	Adequate open air clothes drying facilities should be provided that are easily accessible to all residents and are visually screened from the street and adjoining premises.
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Numbering of buildings

Controls

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| C9. | Street numbers are to be placed on the building in accordance with Council's street numbering system and be visible from the primary street frontage. |
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Public utilities

Controls

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| C10. | <p>For new development and substantial alterations to existing premises provision must be made for connection to future underground distribution mains.</p> <p>In such developments the following must be installed:</p> <ul style="list-style-type: none"> • an underground service line to a suitable existing street pole; or • sheathed underground consumers mains to a customer pole erected near the front property boundary (within 1 metre). <p>Council may require the bundling of cables in the area surrounding the development to reduce the visual impact of the overhead cables.</p> <p>For further details see Energy Australia requirements.</p> |
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Mail boxes and parcel delivery

Controls

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| C11. | All mail boxes should be designed in a manner that enhances the visual presentation of the building(s) they serve. |
| C12. | Mail box structures should not dominate the street elevation. |
| C13. | Individual mail boxes should be located close to each ground floor dwelling entry where individual street entries are provided. |

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|------|---|
| C14. | All multi-dwelling housing, shop top housing and residential flat buildings should incorporate parcel delivery facilities such as a parcel locker. |
| C15. | Mail boxes and parcel delivery facilities for all multi-dwelling housing, shop top housing and residential flat buildings should be located close to the building entry, in a well-lit and weather protected area, with the potential for passive surveillance. |
| C16. | All mail boxes must comply with the requirements of Australia Post. |

Swimming pools and spas

Controls

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| C17. | Swimming pools and spas should be located behind the front building line. |
| C18. | For corner allotments or where the property has two street frontages, the location of swimming pools/spas is not to be in the primary frontage. |
| C19. | Swimming pools/spas should be positioned so that the coping is a minimum of 800mm from the property boundary. |
| C20. | In-ground swimming pools should be built so that the top of the swimming pool is as close to the existing ground level as possible. On sloping sites this will often mean excavation of the site on the high side to obtain the minimum out of ground exposure of the swimming pool at the low side. |
| C21. | Provided one point on the swimming pool or one side of the swimming pool is at or below existing ground level, then one other point or one other side may be up to 500mm above existing ground level. |

Tennis Courts

Controls	
C22.	Tennis courts are to be sited at the rear of properties.
C23.	For corner allotments or where the property has two street frontages, the location of tennis courts is not to be in the primary frontage.
C24.	A minimum of five (5) metres should be maintained between the tennis court fencing and habitable rooms of any dwelling.
C25.	Tennis courts should be positioned having regard to the location of habitable rooms both on site and on adjoining properties and to the maintenance of appropriate private open space.
C26.	Screen planting should be provided between court fencing and the nearest property boundary or any dwelling on an adjoining property.
C27.	The court playing surface should be of a material that minimises light reflection.
C28.	Flood lighting is generally not permitted unless it can be demonstrated the lighting and use of the court at night will not interfere with neighbour amenity.
C29.	Fencing material is to be a recessive colour.
C30.	Fences are to be set back a minimum of 1.5 metres from boundaries.
C31.	Cut and fill associated with the construction of a tennis court should not unreasonably intrude into the natural topography of the land.

TV antennae and satellite dishes

Controls	
C32.	Satellite dishes, telecommunication antennae and ancillary facilities are to be: a) Located away from the front and side boundaries; b) Installed so that they do not encroach upon any easements, rights of ways, vehicular access or parking spaces required for the property, and c) Painted in colours selected to match the colour scheme of the building.
C33.	Satellite dishes where they are situated in rear yards are to be less than 1.8m above ground.
C34.	Only one (1) telecommunications/TV antennae will be permitted for each residential flat building.

F6 Public Art

Public art contributes to place identity and increasingly it is a significant part of the visitor experience. Cities around the world have recognised the value of cultural statements and public art has a key role in giving character and cultural definition to areas. This has been particularly successful in Australia with substantial public art initiatives reactivating waterfronts and urban development. The City of Canada Bay has increasingly used art as part of place making across the City.

Objectives

- O1. To include public art in communal and public spaces.
- O2. To focus public art on the history and heritage, stories, people, landscape, streetscape, and culture of the place.

Controls

C1.	Consider the City of Canada Bay Public Art Plan and City of Canada Bay Cultural Plan and provide details of public art to be included in communal and public spaces.
C2.	Identify locations for mural, integrated artworks, sculptural and lighting projects including hoardings for new developments.
C3.	Coordinate cultural input and community participation into interpretive artworks and public art.
C4.	Use public art, interpretive work, oral histories and industrial artefacts to celebrate the working heritage of Canada Bay's foreshores.
C5.	Reflect industrial, social and cultural history in the built and natural environment.

